

Terms and conditions

Last updated 06 MAY 2026

1.Introduction & Acceptance

These terms and conditions ("Terms") govern the use of services made available on or through <https://www.vieccarryindia.com/> and/or the "NEEDIN" mobile app (collectively, the "Needin Platform", and together with the services made available on or through the Needin Platform, the "Services"). These Terms also include our privacy policy, available on the website and the app ("Privacy Policy"), and any guidelines, additional, or supplemental terms, policies, and disclaimers made available or issued by us from time to time ("Additional Terms"). Privacy Policy and Additional Terms form an integral part of these Terms.

These Terms form a legally binding agreement between Viec Carry India Private Limited a company incorporated under the Companies Act, 2013, whose registered office is located at BG-60 Main NH 58 Rohta Road, Meerut PIN 250001 Uttar Pradesh, India ("Company", "we", "us", or "our"), and you, a user of the Services, or any legal entity that books services (defined below) on behalf of end-users ("you" or "User"). By using the Services, you represent and warrant that you have full legal capacity and authority to agree to and bind yourself to these Terms. Where you access or use the Services on behalf of another person or entity, you confirm that you are duly authorized to accept these Terms on their behalf. Please read these Terms carefully. By accessing or using the Needin Platform, you are agreeing to these Terms and concluding a legally binding contract with the Company. You may not use the Services if you do not accept the Terms or are unable to be bound by the Terms. Your use of the Needin Platform is at your own risk, including the risk that you might be exposed to content that is objectionable, or otherwise inappropriate.

In order to use the Services, you must first agree to the Terms. You can accept the Terms by:

- (a) Clicking to accept or agree to the Terms as may be applicable from time to time, where it is made available to you by the Company in the user interface for any particular Service; or
- (b) Actually using the Services. In this case, you understand and agree that the Company will treat your use of the Services as acceptance of the Terms from that point onwards.

By using the Services, you agree that you have read, understood, and are bound by these Terms, as amended from time to time, and that you will comply with the requirements listed here. These Terms expressly supersede any prior written agreements with you. If you do not agree to these Terms, or comply with the requirements listed here, please do not use the Services.

2.USER ELIGIBILITY AND ACCOUNT ACCESS

2.1. You confirm that you are at least 18 years old and have the legal capacity to understand, accept, and comply with these Terms.

2.2. You are in compliance with all laws and regulations of India when you access and use the Services. You agree to use the Services only in compliance with these Terms and applicable law, and in a manner that does not violate our legal rights or those of any third party(ies) or the rights of any Service Providers providing Needin services.

2.3 To avail the Services, you will be required to create an account on the Needin Platform ("Account"). For this Account, you may be required to furnish certain details, including but not limited to your name, e-mail address, and phone number and such other information or documentation as may be required for identity verification, fraud prevention, or compliance with applicable law.

2.4 You warrant that all information furnished in connection with your Account is and shall remain accurate and true. You agree to promptly update your details on the Needin Platform in the event of any change to or modification of this information.

2.5 You are solely responsible for maintaining the security and confidentiality of your Account and agree to immediately notify us of any disclosure or unauthorised use of your Account or any other breach of security with respect to your Account.

2.6 You are responsible for all actions carried out through your Account, whether undertaken by you or by any third party using your login credentials. We shall not be liable for any unauthorised access to your Account unless such unauthorised access arises due to our gross negligence or wilful misconduct.

2.7 You agree to receive communications from us regarding: (i) requests for payments, (ii) information about us and the Services, (iii) promotional offers and services from us and our third-party partners, and (iv) any other matter in relation to the Services in accordance with applicable law and the Privacy Policy.

3. NEEDIN PLATFORM AND EXPRESS SERVICES

3.(A). The Services include the provision of the Needin Platform that enables you to access and avail: (a) certain home-based services and / or certain other services, that may be made accessible to you by the Company through independent third-party service providers

("Service Providers") who are onboarded on the Needin Platform to offer general house help, car wash, bike wash, water tank cleaning and other hyperlocal services and other services ("Needin services"). The Company is only an aggregator and a technology intermediary in respect of services and facilitates discovery, booking and payment facilitation using third party payment processors and banks, for such Needin services, but does not provide or control the performance of such Needin services. The matching of Users with Service Providers may be facilitated through automated or algorithmic systems and does not constitute any recommendation, endorsement, or guarantee by the Company. For clarity, Needin services are not services provided by the Company.

3.(B). The Services may be offered through different formats, including one-time bookings, bundled service packages, subscription-based plans (daily, weekly or monthly), or other service offerings as may be made available on the Needin Platform from time to time. In the case of subscription-based plans or service packages, you may be required to make an upfront payment for services to be delivered over a defined period, and such payments shall be treated as advance consideration for Services and may, where applicable, be reflected as a prepaid balance in accordance with Clause 5.14 below. Such offerings may be subject to additional terms, including validity periods, usage limits, scheduling conditions, and eligibility for refunds or carry-forward, as may be specified on the Needin Platform at the time of purchase or booking. Such offerings may, where applicable, be funded through other payment mechanisms made available on the Needin Platform.

3.(C). The Company does not undertake or assume responsibility for the performance of any Needin services. Each Service Providers bears sole responsibility and liability for the Needin services they provide, including their quality, safety, and execution. The Company and its affiliates do not employ Service Providers, nor are the Service Providers, agents, contractors, or partners of the Company or its affiliates. Service Providers are not authorized to act for, represent, or create obligations on behalf of the Company. While the Company provides training to the Service Providers, from time to time and also provides the necessary tools and equipment, as may be required, the Company does not supervise, direct, or control the manner or method of performance of Needin services by Service Providers. The Company would however undertake reasonable due diligence measures, including identity verification, background and onboarding checks of Service Providers.

3.(D). The Needin Platform is for your personal and non-commercial use only.

3.(E). To support service delivery and Needin Platform operations, the Company may communicate with you via phone calls, text messages, emails, WhatsApp, or in-app notifications, including for Needin Platform updates, booking updates, transactional information, and service-related announcements. You may request limiting certain categories of communications; however, doing so may restrict our ability to provide timely updates or complete certain services. Such communications shall be made in accordance

with applicable law and the Privacy Policy.

3.(F). The Company or a Service Providers may require you to provide valid identification in connection with certain Services or Needin services, and failure to do so may restrict access to such services.

3.(G). The Company reserves the right to decline or refuse any booking request at its discretion, including where it identifies safety, compliance, or operational concerns and does not guarantee the availability of Service Providers for all requested services, time slots, or locations.

3.(H). The Company may periodically update, refine, or modify the Needin Platform and Services to improve functionality and user experience. You acknowledge and agree that the nature and scope of services offered on the Needin Platform may be subject to changes, updates, or modifications from time to time. Accordingly, the Company reserves the right to modify, suspend, cancel, or discontinue any or all of its Services, features, or content at any time, without prior notice. Such modifications may include, but are not limited to, changes in service offerings, pricing, policies, or Needin Platform functionalities. Your continued use of the Needin Platform following any such changes shall constitute your acceptance of the modified terms. The Company shall not be liable for any disruption, modification, or discontinuation of any services or features, whether temporary or permanent.

3.(I). Prices for Services would be determined dynamically based on factors including demand, location, service complexity, time of booking, and other marketplace conditions, and may be generated through automated or algorithmic systems. Service Providers may be displayed, ranked, or categorised on the Needin Platform based on objective criteria such as user ratings, service quality, completion history, and other marketplace parameters, and such ranking is intended to enhance transparency and does not constitute a guarantee of service quality or outcome. Certain Services may be delivered using standardised materials, consumables, uniforms, or processes prescribed by the Company to maintain consistency, safety, and service quality across the Needin Platform, and the use of such materials or branding shall not be construed as creating any employment or agency relationship between the Company and Service Providers.

3.(J) Needin Express services, being a technology-enabled travel and route-based parcel, luggage, and item delivery facilitation service through independent third-party delivery partners, travellers, transporters, or carriers ("Express Partners"), enabling users to send permitted packages between locations on, scheduled, or travel-route basis ("Needin Express Services").

3.(K) The Company acts solely as an intermediary technology platform for facilitating connections between Users and Express Partners and does not itself undertake transportation, courier, logistics, warehousing, or delivery operations.”

3.(L) The Company does not guarantee delivery timelines, uninterrupted transportation, condition of parcels, or availability of Express Partners and shall not be liable for delays, route deviations, cancellations, traffic conditions, accidents, natural events, or actions or omissions of Express Partners.”

4 BOOKINGS, SCHEDULING AND SERVICE ACCESS

4.1. The Needin Platform allows you to place requests for Needin services based on availability and time slots displayed at the time of booking. To make a booking, you should follow the instructions on the Needin Platform and provide necessary information. We use reasonable efforts to enable you to find a Service Providers who is able to provide that Service at the requested time. If we are unable to find a Service Providers for the specific time slot, we will contact you to find an alternative time to reschedule, or intimate you when the Service Provider is available to provide the Service or cancel the booking. The allocation or matching of Service Providers may be facilitated through automated or algorithmic systems.

4.2. Once you place a request, we will provide confirmation of the booking via SMS, email or a push notification. Once your booking has been confirmed, you will be required to make the payment in accordance with these Terms or as indicated on the Needin Platform. Once a Service Providers has been identified for the requested Needin services, you shall receive confirmation in-app or via SMS, email or a push notification containing details of the Service Providers including, where available, relevant information such as name, ratings, experience, or other marketplace-related details to enable informed decision-making.

4.3. Bookings that are cancelled before confirmation on the Needin Platform will not be charged. Our cancellation policy, available at [Cancellation Policy](#), sets out applicable cancellation Service Charges.

4.4. If a booked Service Providers becomes unavailable, the Company may, where possible, arrange an alternative Service Providers or assist with rescheduling or cancellation and the User acknowledges that availability of a replacement Service Provider is not guaranteed.

4.5. The User acknowledges that certain Needin services may require the availability of utilities, equipment, consumables, or access at the service location, and the Service Providers's ability to perform the Needin services may be affected if such requirements are not met. The Company may in such circumstances update assigned Service Providers or

revise pricing components prior to service commencement, subject to informing the User and obtaining confirmation where required and such revisions may be based on actual service requirements or marketplace conditions.

4.6. You agree to ensure that the Service Provider is provided with timely and adequate access to the service location and all necessary conditions required for the performance of the Needin services. This includes, without limitation:

- (a) obtaining and facilitating entry permissions, security clearances, or gate passes (including at gated communities or commercial premises);
- (b) ensuring availability of functional lifts, parking space, or reasonable access for movement of equipment, where applicable;
- (c) informing in advance of any conditions that may affect service delivery, including the presence of pets, restricted access areas, or safety hazards; and
- (d) ensuring that there are no undue delays at the service location, including delays caused by building management, security procedures, or access restrictions.

4.7. The User acknowledges that any failure to comply with the above may result in delays, inability to perform the Needin services, additional charges, or cancellation or rescheduling of the booking, and the Company and/or the Service Providers shall not be liable for any such delay or non-performance attributable to such conditions.

4.8. Any time estimates, schedules, or service durations displayed on the Needin Platform for a booking are indicative only and may vary based on on-ground conditions and do not constitute a guarantee of completion timelines.

4.9 The Company may require sender or receiver identity verification for certain Needin Express bookings

5 PAYMENTS, BILLING AND PREPAID BALANCE

5.1. The Company reserves the right to collect from you for the different Services provided by it and/or Needin services provided by the Service Providers, which you may avail and/or for any other facilities you may opt for, from time to time, on or via the Needin Platform in accordance with applicable law and as disclosed on the Needin Platform at the time of booking.

5.2. In respect of Needin services that you seek to avail through the Needin Platform, you shall be required to pay the Company the amount indicated at the time of booking ("Service Charges"). The Service Charges may include amounts towards (a) the Needin services you

avail, (b) a convenience fee for facilitating the booking, (c) out-of-pocket expenses incurred by the Service Providers, (d) expenses arising out of the purchase of goods required or utilised for the performance of the Needin Service, and (e) any other charges, including a safety fee, warranty fee, insurance fee, or Service Providers welfare fee or similar charges as may be disclosed on the Needin Platform. The Service Charges shall be different for one time service, bundled service packages, scheduled-based plans (daily, weekly or monthly), or other service offerings as may be made available on the Needin Platform from time to time.

5.3. All Service Charges are subject to applicable taxes.

5.4. The Company shall notify you of the applicable Service Charges, taxes, and payment methods at the time of booking. Typically, you may make payments for Needin services through credit cards, debit cards, net banking, wallets, or UPI or such other means as may be made available on the Needin Platform.

5.5. The Company duly raises the tax invoice/ debit note/ credit note in accordance with the regulatory requirement of the GST legislation, in case you may require the tax invoice please reach out to us on support@withneedin.com. We shall provide you with a copy of the same within 5 business working days.

5.6. All Service Charges for Needin services are facilitated by the Company on behalf of the relevant Service Providers. Payment made by you to the Company for Needin services shall be deemed to be made directly to the Service Providers to the extent of their revenue. The Company facilitates payment of amounts to Service Providers in accordance with separate arrangements between the Company and such Service Providers.

5.7. The Company reserves the right to amend the Service Charges at any time at its sole discretion. A change in Service Charges shall not impact any bookings that have been confirmed before the publication of the revised Service Charges on the Needin Platform.

5.8. Payments made for confirmed bookings are generally non-refundable, except where a refund is required under applicable law or expressly approved by the Company.

5.9. You acknowledge that prices may vary based on location, demand, or other market conditions, and higher charges may apply during peak periods. The Company will use reasonable efforts to inform you of the Service Charges that may apply. However, by using Needin services or Services, you will be responsible for the Service Charges incurred under your Account regardless of your awareness of such Service Charges and such pricing may be determined dynamically based on marketplace conditions or through automated systems.

5.10. Subject to applicable law, the Company reserves the right to withhold, delay, or adjust payments payable in connection with any Needin services where it reasonably believes that

(a) a refund, chargeback, or user claim may arise, (b) there has been suspected fraud, misuse, or violation of these Terms, or (c) such withholding is required to comply with applicable law or contractual obligations. The Company may also set off any amounts payable to you against any amounts owed by you to the Company.

5.11. In the event of any chargeback, payment reversal, or disputed transaction, the Company reserves the right to recover the applicable amount and associated costs from the User.

5.12. We may use a third-party payment processor ("Payment Processor") to bill you through your selected mode of payment. The processing of payments will be subject to the terms and policies of such Payment Processor in addition to these Terms. We shall not be liable for any error of the Payment Processor. In the event of any unsuccessful payment, the money debited shall be credited in accordance with the terms of the Payment Processor.

5.13. Off-Needin Platform Payments — You agree that all payments for NEEDIN SERVICES shall be made solely through the payment mechanisms made available on the Needin Platform. You shall not, directly or indirectly, make any payment or settle any charges with a Service Providers outside the Needin Platform. The Company shall not be liable for any services, disputes, losses, or damages arising from or in connection with any payments made directly to a Service Providers outside the Needin Platform, and such transactions shall be undertaken entirely at your own risk.

5.14. Prepaid Balance

5.14.A. The Needin Platform may enable you to maintain a prepaid balance for the purpose of availing Services ("Prepaid Balance"). The Prepaid Balance represents an advance payment made by you for Services to be availed on the Needin Platform and is maintained as a user ledger balance with the Company.

5.14.B. The Prepaid Balance may be used solely for booking and payment of Services available on the Needin Platform and shall not be used for any payments to third parties outside the Needin Platform.

5.14.C. The Prepaid Balance shall be non-transferable, non-interest bearing, and shall not be redeemable for cash, transferable to any third party, or withdrawn to any bank account, except where required under applicable law.

5.14.D. The Company may prescribe a maximum limit of INR 5,000 (Indian Rupees Five Thousand only) for the Prepaid Balance that may be maintained in your Account at any

given time, which shall be communicated on the Needin Platform from time to time.

5.14.E. The prepaid balance shall remain valid for a period of 6 (Six Month) from the date of loading or such other period as may be specified on the Needin Platform, after which any unused balance may expire and may be forfeited and shall not be available for use or refund, subject to applicable law.

5.14.F. The Prepaid Balance is intended solely as a mechanism to facilitate advance payments for Services on the Needin Platform and does not constitute a prepaid payment instrument, wallet, deposit, or any regulated payment system under applicable law.

6.USER RESPONSIBILITIES AND PLATFORM CONDUCT

6.1. The Company strictly prohibits discrimination against Service Providers on the basis of race, religion, caste, national origin, disability, sexual orientation, sex, marital status, gender identity, age, or any other characteristic protected under applicable law. Prohibited discrimination includes, without limitation, refusing to accept or engage Needin services based on any such characteristic.

6.2. You agree to treat all Service Providers with courtesy, dignity, and respect, and to provide a safe, clean, and appropriate location for the performance of the Needin services. Service Providers shall be entitled to refuse to perform Needin services if such conditions are not provided or if you engage in conduct that is discourteous, disrespectful, abusive, threatening, or otherwise inappropriate. The Company reserves the right, in its sole and absolute discretion, to suspend, restrict, or terminate your access to the Services or Needin services if your conduct toward any Service Provider is deemed discourteous, disrespectful, abusive, inappropriate, or unlawful.

6.3. You acknowledge and agree that you shall be solely responsible and liable for any discrimination against Service Providers and for any failure, whether intentional or unintentional, to provide a safe, clean, and appropriate location for the performance of Needin services. You further agree to promptly and fully disclose to the Company and the relevant Service Providers any information that may reasonably affect the Service Providers's ability to perform the Needin services or that may impact the Service Providers's health, safety, or well-being.

6.4. The Company reserves the right to restrict access to refunds, promotions, or Services where it identifies a pattern of excessive, abusive, or bad-faith complaints, cancellations, or refund requests or misuse of the Needin Platform.

6.5. You agree that if a Service Providers engages in conduct that is discourteous, disrespectful, abusive, inappropriate, or unlawful or unreasonable, you shall report such conduct to the Company at Help@withneedin.com as soon as reasonably practicable, and in any event within Twenty-Four (24) hours of the occurrence of such conduct.

6.6. You represent and warrant that all information, documentation, material, or data provided by you in connection with the Services and/or Needin services is complete, accurate, true, and not misleading as of the date you agree to these Terms, and that such information shall remain complete, accurate, and true for so long as you continue to avail the Services and/or Needin services. You agree to promptly notify the Company of any changes to such information during the term of these Terms. The Company shall not be responsible or liable for any loss or damage suffered or incurred by you as a result of any incorrect, incomplete, inaccurate, misleading, or undisclosed information or material facts provided by you and such information may be used by the Company in accordance with the Privacy Policy and applicable law.

6.7. You agree to provide all reasonable cooperation and assistance to the Company in the defence of any claim, demand, investigation, or proceeding arising out of or relating to any breach of your obligations, representations, warranties, or covenants under these Terms.

6.8. The Company and Service Providers shall not be responsible for delays, defects, or failures in Needin services arising from interference, obstruction, or instructions provided by the User or any third party at the service location or due to conditions at the service location not disclosed at the time of booking.

6.9. The Company shall not be responsible for pre-existing defects, damage, or wear and tear at the service location, including fragile or deteriorated surfaces, fittings, or equipment.

6.10. The User is responsible for securing valuables, fragile items, and sensitive equipment prior to commencement of Needin services. The Company and Service Providers shall not be responsible for loss or damage to such items except as required under applicable law.

6.11. In relation to the User Review, you represent and warrant that:

(a) you own all intellectual property rights in the User Review or have obtained all necessary rights, licences, consents, and permissions to submit such User Review and to grant the licences set out under these Terms;

(b) you are solely responsible for all activities conducted through your Account on the Needin Platform and for all User Review submitted, posted, or transmitted by you;

- (c) the User Review does not and shall not violate any obligation, restriction, or responsibility imposed on you under any other agreement;
- (d) the User Review does not and shall not infringe, violate, or misappropriate any intellectual property right, proprietary right, right of publicity, or right of privacy of any person or entity;
- (e) the User Review does not and shall not contain viruses, malware, corrupted data, or any other harmful, disruptive, or destructive code or material;
- (f) the User Review does not and shall not violate any applicable law or any third-party rights; and
- (g) the User Review: (A) does not belong to any other person to which you do not have lawful rights; (B) does not undermine national security, public order, or any interest protected under applicable Indian law, does not threaten friendly relations with foreign states, public order, or cause incitement to the commission of any cognisable offence, prevent investigation of any offence, or insult another nation; (C) is not defamatory, grossly harmful, blasphemous, paedophilic, invasive of another's privacy, discriminatory on the basis of gender, racially or ethnically objectionable, disparaging, hateful, violent, obscene, pornographic, unlawful, harmful to children, or relating to or encouraging money laundering or gambling; and (D) is not otherwise offensive, objectionable, or likely to restrict or inhibit any person from using or enjoying the Services.

6.12. You agree not to use the Services except as expressly permitted under these Terms. Without limiting the foregoing, you shall not host, display, upload, modify, publish, transmit, store, update, or share any information that:

- (a) infringes any intellectual property or proprietary rights, including copyrights, patents, trademarks, or trade secrets;
- (b) belongs to another person and to which you do not have any lawful right;
- (c) is obscene, pornographic, paedophilic, invasive of privacy (including bodily privacy), insulting or harassing on the basis of gender, racially or ethnically objectionable, or relates to or encourages money laundering or gambling, or promotes enmity between groups based on religion or caste with intent to incite violence;
- (d) is harmful to a child;
- (e) impersonates any person or entity;
- (f) threatens the unity, integrity, defence, security, or sovereignty of India, friendly relations with foreign states, public order, or incites the commission of any cognisable offence, prevents investigation of any offence, or insults another nation;

(g) contains software viruses or any code, files, or programs designed to disrupt, damage, or limit the functionality of any computer resource; or

(h) is patently false or misleading and is published with the intent to deceive, harass, or cause financial gain or injury to any person, entity, or agency.

6.13. You shall not engage in any activity that interferes with, disrupts, or adversely affects the functioning of the Services. You shall not attempt to gain unauthorised access to any portion of the Services, the Needin Platform, any related systems or networks, or any of the Company's servers, whether through hacking, password mining, or any other unlawful or illegitimate means.

6.14. You shall not, directly or indirectly, solicit, induce, influence, engage, approach, accept, or encourage the solicitation or approach of any Service Providers from whom you have availed Needin services to terminate or cease their association with the Needin Platform or to provide services similar to the Needin services outside the Needin Platform without booking such Needin services through your Account. You acknowledge and agree that this restriction is reasonable, fair, and necessary to protect the privacy, security, and legitimate business interests of the Company and Service Providers, and that any breach of this clause may result in suspension or termination of your access to the NEEDIN SERVICES.

6.15 Users shall not send or attempt to send any prohibited, illegal, dangerous, hazardous, flammable, explosive, perishable, counterfeit, restricted, stolen, or regulated items through Needin Express Services including narcotics, weapons, live animals, cash, precious metals, illegal substances, or any item prohibited under applicable law. The Company reserves the right to refuse, cancel, inspect, report, or dispose of any shipment suspected of violating applicable law or these Terms.

6.16 Users are solely responsible for secure, lawful, and appropriate packaging of parcels handed over for Needin Express Services."

7. USER FEEDBACK AND CONTENT

7.1. The Needin Platform may include interactive features or Services that allow users who have created an Account to post, upload, publish, display, transmit, submit, or otherwise make available comments, reviews, suggestions, feedback, ideas, or other content on or through the Needin Platform (collectively, "User Review").

7.2. For the effective provision of the Services and for quality control purposes, the Company may request that you submit reviews relating to Service Providers, and you agree and acknowledge that Service Providers may submit reviews relating to you. You agree not to knowingly submit any false, inaccurate, misleading, or deceptive information in

connection with any review. Feedback and reviews may be analyzed by the Company to monitor service standards and determine continued access to the Needin Platform. If the Company determines, in its sole discretion, that you are not an appropriate User, the Company reserves the right to suspend or terminate your Account and remove your access to the Needin Platform in accordance with these Terms and applicable law.

7.3. You grant the Company a non-exclusive, worldwide, perpetual, irrevocable, transferable, sublicensable, and royalty-free license to the User Review for the purposes set out under these Terms submitted and the Company shall have the right to:

- (a) use, reproduce, publish, display, store, host, transfer, process, communicate, distribute, make available, modify, adapt, translate, and create derivative works of such User Review as reasonably necessary for the operation, maintenance, and provision of the Services; and
- (b) use such User Review for limited purposes, including advertising and promoting the Services, and for compliance with applicable laws or for submission as evidence before a court or other authority of competent jurisdiction.

7.4. To the extent allowed under applicable law, you waive any moral rights or similar rights you may have in relation to User Review submitted through the Needin Platform.

7.5. The Company may, at any time and without prior notice, remove, disable access to, or otherwise restrict any User Review that the Company determines, in its sole discretion, violates these Terms, applicable laws, or the rights of any third party or upon receiving actual knowledge in the form of a court order or notification from an appropriate governmental authority, in accordance with applicable law.

8. PRIVACY, DATA USAGE AND COMMUNICATIONS

8.1. You agree that we may, in accordance with our Privacy Policy, collect and use your personal data for the purposes set out therein. The Privacy Policy is available on the website and app and it explains the categories of personal data that we collect or otherwise process about you and the manner in which we process such data.

8.2. In addition to any consent you may provide pursuant to the Privacy Policy, you hereby consent to us sharing your personal data with our affiliates and third-party service providers strictly on a need-to-know basis and for purposes disclosed in the Privacy Policy, including for provision of the Services, payment processing, user support, analytics, fraud prevention, and service improvement, in accordance with applicable law. We may also use information and data pertaining to your use of the Services in an aggregated or anonymised manner for analytics, trend identification, and statistical purposes.

8.3. Subject to applicable laws, we may be directed by law enforcement agencies or the government and related bodies to disclose data in relation to you in connection with criminal or civil proceedings. You understand and agree that in such instances we shall have the right to share such data with relevant agencies or bodies

9. OUR INTELLECTUAL PROPERTY

9.1. All rights, title and interest in and to the Services, including all intellectual property rights subsisting in or arising out of the Services, are owned by or validly licensed to the Company excluding any intellectual property rights in Needin services or materials independently owned or provided by Service Providers or third parties. Subject to your compliance with these Terms, the Company grants you a limited, non-exclusive, non-transferable, non-sublicensable, and revocable licence to access and use the Services solely in accordance with these Terms and any written instructions issued by the Company from time to time. All rights not expressly granted under these Terms are expressly reserved by the Company and its licensors.

9.2. From time to time, the Company may request that you provide suggestions, comments, bug reports, or other feedback relating to the Services ("Feedback"). You agree that the Company shall have the unrestricted, perpetual, irrevocable, worldwide, transferable, sublicensable, and royalty-free right to use, reproduce, modify, adapt, publish, display, distribute, and otherwise exploit such Feedback for any purpose, without any obligation of attribution, compensation, or prior approval, and without any restriction arising from intellectual property or other proprietary rights.

9.3. Except as expressly provided under these Terms, nothing herein shall be construed as granting, by implication, estoppel, or otherwise, any right, title, or licence in or to any intellectual property rights of the Company or any third party including any Service Providers.

10. THIRD PARTY SERVICES

10.1. The Needin Platform may include or make available services, content, documents, information, or links that are owned, licensed, or provided by third parties ("Third-Party Services"). You acknowledge and agree that Third Party Services are provided solely by the relevant third-party and that the Company does not control, endorse, or assume responsibility for such Third-Party Services. Your access to and use of Third-Party Services is entirely at your own risk.

10.2. The Company makes no representations or warranties, whether express or implied, and expressly disclaims all liability arising from or relating to Third Party Services, including with respect to their availability, accuracy, completeness, legality, quality, or fitness for any

purpose. Your use of any Third Party Services shall be governed solely by the terms and conditions and privacy policies of the applicable third parties. All intellectual property rights in and to Third Party Services remain the exclusive property of the respective third parties.

11. USER INDEMNIFICATION

11. You agree to indemnify, defend (at the Company's option), and hold harmless the Company, its parent companies, subsidiaries, affiliates, and each of their respective officers, directors, employees, agents, and representatives from and against any and all claims, demands, actions, suits, proceedings, losses, liabilities, damages, judgments, settlements, penalties, and expenses (including reasonable attorneys' Service Charges and costs) arising out of or relating to:

- (a) your access to or use of the Services or Needin services;
- (b) your violation or alleged violation of these Terms; or
- (c) any access to or use of your Account or the Services or Needin services by any third party, whether or not authorised by you

12. Limitation of liability

12.1. In no event shall the company, its officers, directors, and employees, or its contractors, agents, licensors, partners, or suppliers, be liable to you for any direct, special, indirect, incidental, consequential, punitive, reliance, or exemplary damages (including without limitation, lost business opportunities, lost revenues, or loss of anticipated profits or any other pecuniary or non-pecuniary loss or damage of any nature whatsoever), even if the company or an authorised representative had been advised of the possibility of such damages, arising out of, or relating to (a) these terms, (b) the services or the needin services, (c) your use or inability to use the services or the needin services, or (d) any other interactions with another user of the services except to the extent such liability cannot be excluded or limited under applicable law.

12.2. To the maximum extent permitted by law, our liability shall be limited to the amount of service charges we receive in respect of a particular booking made on the needin platform.

12.3. Without prejudice to clause 11.2 and to the maximum extent permitted under applicable law, in no event shall the total liability of the company arising out of or in connection with these terms or the services exceed the lower of (a) the service charges paid by the user for such booking, or (b) inr 5,000 (rupees five thousand) in the aggregate.

12.4. To the maximum extent permitted under applicable law, liability relating to any parcel loss, damage, delay, or misdelivery shall not exceed the lower of the declared parcel value or the applicable booking amount paid for the relevant Needin Express booking

13. DISCLAIMERS, RISKS AND WARRANTIES

13.1. THE SERVICES ARE PROVIDED ON AN "AS IS" BASIS WITHOUT WARRANTY OF ANY KIND, EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, INCLUDING WITHOUT LIMITATION THE IMPLIED WARRANTIES OF TITLE, NON-INFRINGEMENT, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE. WITHOUT LIMITING THE FOREGOING, WE MAKE NO WARRANTY THAT THE SERVICES WILL MEET YOUR REQUIREMENTS OR EXPECTATIONS.

13.2. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM US SHALL CREATE ANY WARRANTY THAT IS NOT EXPRESSLY STATED IN THE TERMS.

13.3. YOU ACKNOWLEDGE THAT THE COMPANY OPERATES A TECHNOLOGY NEEDIN PLATFORM THAT FACILITATES CONNECTIONS BETWEEN USERS AND SERVICE PROVIDERS AND DOES NOT ITSELF PERFORM OR GUARANTEE ANY NEEDIN SERVICES. WE ARE NOT LIABLE OR RESPONSIBLE FOR FULFILMENT OF ANY BOOKINGS, FOR THE PERFORMANCE OF THE NEEDIN SERVICES BY ANY SERVICE PROVIDERS, OR FOR ANY ACTS OR OMISSIONS OF THE SERVICE PROVIDERS DURING THEIR PROVISION OF THE NEEDIN SERVICES INCLUDING ANY DAMAGE THEY MAY CAUSE TO PROPERTY. BY BOOKING NEEDIN SERVICES THROUGH THE NEEDIN PLATFORM, YOU ARE ENTERING INTO A CONTRACT WITH THE RELEVANT SERVICE PROVIDERS FOR THE PROVISION OF THOSE SERVICES, AND WE ACCEPT NO RESPONSIBILITY OR LIABILITY, NOR DO WE MAKE ANY WARRANTY, REPRESENTATION, OR GUARANTEE IN RESPECT OF THE SERVICE PROVIDERS'S PERFORMANCE UNDER THAT CONTRACT.

13.4. THE COMPANY DOES NOT GUARANTEE ANY SPECIFIC OUTCOME, RESULT, OR LEVEL OF SATISFACTION ARISING FROM THE NEEDIN SERVICES. ANY EXPECTATIONS REGARDING QUALITY, TIMELINES, OR RESULTS ARE SOLELY BETWEEN THE USER AND THE SERVICE PROVIDERS PROVIDING THE NEEDIN SERVICES.

13.5. YOU HEREBY ACCEPT FULL RESPONSIBILITY FOR ANY CONSEQUENCES THAT MAY ARISE FROM YOUR USE OF THE NEEDIN SERVICES, AND EXPRESSLY AGREE AND ACKNOWLEDGE THAT WE SHALL HAVE ABSOLUTELY NO LIABILITY IN THIS REGARD.

13.5.A Users acknowledge that Needin Express Services involve third-party transportation and travel-based logistics and that all shipments are undertaken at the User's own risk subject to applicable law

13.6. TO THE FULLEST EXTENT PERMISSIBLE BY LAW, WE, OUR AFFILIATES, AND OUR RELATED PARTIES, EACH DISCLAIM ALL LIABILITY FOR ANY LOSS OR DAMAGE ARISING OUT OF, OR DUE TO: (I) YOUR USE OF, INABILITY TO USE, OR AVAILABILITY OR UNAVAILABILITY OF THE SERVICES OR THE NEEDIN SERVICES; (II) THE OCCURRENCE OR EXISTENCE OF ANY DEFECT, INTERRUPTION, OR DELAYS, IN THE OPERATION OR TRANSMISSION OF INFORMATION TO, FROM, OR THROUGH THE SERVICES, COMMUNICATIONS FAILURE, THEFT, DESTRUCTION, OR UNAUTHORISED ACCESS TO OUR RECORDS, PROGRAMMES, SERVICES, SERVERS, OR OTHER INFRASTRUCTURE RELATING TO THE SERVICES; (III) THE FAILURE OF THE SERVICES TO REMAIN OPERATIONAL FOR ANY PERIOD OF TIME; AND (IV) THE LOSS OF ANY USER REVIEW AND ANY OTHER DATA IN CONNECTION WITH YOUR USE OF THE SERVICES.

13.7. NOTHING IN THESE TERMS WILL EXCLUDE OR LIMIT ANY WARRANTY IMPLIED BY LAW THAT IT WOULD BE UNLAWFUL TO EXCLUDE OR LIMIT.

13.8. YOU ACKNOWLEDGE THAT ANY DESCRIPTIONS, ESTIMATES, OR PROMOTIONAL MATERIALS RELATING TO THE SERVICES ARE INDICATIVE ONLY AND DO NOT CONSTITUTE BINDING REPRESENTATIONS OR GUARANTEES. THE COMPANY SHALL NOT BE RESPONSIBLE FOR ANY DAMAGE TO PROPERTY ARISING FROM OR DURING THE PERFORMANCE OF NEEDIN SERVICES, EXCEPT TO THE EXTENT REQUIRED UNDER APPLICABLE LAW.

14. Suspension & Termination

14.1. These Terms shall remain in effect unless terminated in accordance with the terms hereunder.

14.2. We may restrict, deactivate, or terminate your access to, or use of, the Services, or any portion thereof, immediately and at any point at our sole discretion, (A) if you violate or breach any of the obligations, responsibilities, or covenants under these Terms, (B) you do not, or are likely not to qualify under applicable law, or the standards and policies of the Company or its affiliates, to access and use the Services, or (C) for any legitimate business, legal, or regulatory reason subject to applicable law and, where feasible, providing reasonable notice or an opportunity to remedy such breach.

14.3. You may terminate these Terms, at any time, for any reason by sending a notice to the Company at legal@withneedin.com.

14.4. Upon termination of these Terms: (a) the Account will expire; (b) the Services will "time-out"; and (c) these Terms shall terminate, except for those clauses that are expressly, or by implication, intended to survive termination or expiry.

14.5. The Company may temporarily suspend access to the Services or Needin services, in whole or in part, while it investigates any suspected breach of these Terms, user complaints, safety concerns, or legal or regulatory issues. Such suspension shall not constitute termination and may be lifted at the Company's discretion.

14.6. Clauses relating to intellectual property, PLATFORM DISCLAIMER, limitation of liability, indemnity, governing law, dispute resolution, and any other provisions which by their nature are intended to survive, shall survive termination or expiry of these Terms

15. JURISDICTION, GOVERNING LAWS, AND DISPUTE RESOLUTION

15.1. These Terms shall be governed by and construed and enforced in accordance with the laws of India. Subject to other provisions in this clause, courts in Meerut, Uttar pradesh, India shall have exclusive jurisdiction over all issues arising out of these Terms or the use of the Services.

15.2. Any controversies, conflicts, disputes, or differences, arising out of these Terms shall be resolved by arbitration in Meerut, Uttar pradesh in accordance with the Arbitration and Conciliation Act, 1996 for the time being in force, which is deemed to be incorporated by reference in this clause. The tribunal shall consist of 1 (One) arbitrator appointed by the Company. The language of the arbitration shall be English. The parties to the arbitration shall keep the arbitration confidential, and not disclose to any person, other than on a need-to-know basis, or to legal advisors, unless required to do so by law. The decision of the arbitrator shall be final and binding on all the parties thereto. Each party to the arbitration shall bear its own costs with respect to any dispute.

16. GRIEVANCE REDRESSAL

16.1. User Care Channels

(a) For any booking-related issue, you may first reach out to us via chat support on the app for real-time resolution.

(b) You may also write to us at support@withneedin.com and we will strive to resolve your grievance within the timelines prescribed under applicable laws. For a complaint raised via email, you will receive a unique ticket number to track its status.

16.2. Grievance Officer

In case you do not receive a satisfactory response from the channels above, you can escalate the matter to our Grievance Officer by giving the reference of the ticket number.

Name: Rohit kumara Arya Email Address: help@withneedin.com Contact Number: +91 9286783640 Time: Monday - Friday (10:00 am to 05:00 pm)

16.3. In compliance with The Information Technology Act, 2000 and the rules made thereunder, as well as The Consumer Protection Act 2019, and the rules made thereunder, the grievance redressal mechanism, including the contact details of the Grievance Officer are provided above and shall be updated from time to time in accordance with applicable law.

17.MISCELLANEOUS PROVISIONS

17.1. Electronic Records: Records generated, stored, or maintained by the Company's systems, including Needin Platform logs, transaction histories, communications, and timestamps, shall be deemed accurate and may be relied upon by the Company for all purposes, including dispute resolution, investigations, and legal proceedings.

17.2. Changes to Terms: The Company may vary or amend or change or update these Terms, from time to time entirely at its own discretion. You shall be responsible for checking these Terms from time to time and ensuring continued compliance with these Terms. Your use of the Needin Platform after any such amendment or change in the Terms shall be deemed as your express acceptance to such amended/changed terms and you also agree to be bound by such changed/amended Terms provided that such changes are not materially adverse to you without reasonable notice, where required under applicable law.

17.3. Modification to the Services: The Company reserves the right, at any time and in its sole discretion, to add to, modify, suspend, or discontinue, whether temporarily or permanently, the Services or any part thereof, with or without notice subject to applicable law. To the fullest extent permitted by applicable law, the Company shall not be liable for any addition, modification, suspension, or discontinuation of the Services.

17.4. Relationship: Nothing in these Terms shall be deemed to create any partnership, joint venture, or fiduciary relationship between the Company and any User or Service Providers.

17.5. Severability: If any provision of these Terms is held by a court or other authority of competent jurisdiction to be invalid, unlawful, or unenforceable, such provision shall be severed to the minimum extent necessary, and the remaining provisions shall remain in full force and effect. Where any provision would be valid or enforceable if part of it were deleted, such provision shall apply with the necessary modification to make it lawful and

enforceable.

17.6. Assignment: You may not assign, transfer, license, or otherwise dispose of any of your rights, obligations, or covenants under these Terms, or your Account, without the prior written consent of the Company. The Company may freely assign or transfer these Terms, in whole or in part, to any affiliate, subsidiary, parent company, successor, or any third party in connection with any merger, acquisition, financing, restructuring, or transfer of business or assets, without requiring further consent from the User.

17.7. Notices: All legal notices, requests, demands, or determinations addressed to the Company under these Terms shall be sent in writing to legal@withneedin.com, or to such other contact details as the Company may notify from time to time.

17.8. Third Party Rights: Except as expressly provided in these Terms, no third party shall have any right to enforce or rely upon any provision of these Terms.

17.9. Waiver: Any failure or delay by the Company in enforcing its rights under these Terms shall not operate as a waiver of such rights, nor shall any single or partial exercise of any right preclude further exercise of that or any other right.

17.10. Entire Agreement: These Terms, the Privacy Policy and Additional Terms (as and when issued) constitute the entire agreement between you and the Company with respect to the Services and supersede all prior or contemporaneous communications, representations, or agreements, whether oral or written.

17.11. Force Majeure: The Company shall not be liable for any failure or delay in the performance of its obligations under these Terms where such failure or delay results from events beyond its reasonable control, including, without limitation, acts of God, strikes or labour disputes, failure of utility services or telecommunications networks, war, terrorism, riot, civil commotion, pandemic or epidemic, malicious damage, or compliance with any applicable law, regulation, order, or direction of any governmental authority. Force Majeure events shall also include failures or delays caused by third-party service providers, Service Providers, payment processors, logistics partners, or technology infrastructure providers, to the extent such failures are beyond the Company's reasonable control